

PROFESSIONAL SERVICES AGREEMENT

This Agreement is entered into as of Mar 22, 2025 (the "Effective Date") by and between Evergreen Industries, with its principal place of business in Nashville, TN ("Client"), and Fulcrum Solutions, with its principal place of business in Raleigh, NC ("Provider"). The parties agree as follows:

SECTION A. TERM AND RENEWAL

This Agreement shall commence on the Effective Date and continue for an initial term of 24 months, unless earlier terminated as provided herein. The Agreement will renew automatically for successive terms of equal length unless either party gives written notice of non-renewal at least 15 days before the end of the then-current term.

SECTION B. COMPENSATION

In consideration of the Services, Evergreen Industries shall pay Fulcrum Solutions fees not to exceed \$25,000 per invoice period. All invoices are payable within 15 days of receipt. Amounts unpaid after the due date accrue interest at the lesser of 1.5% per month or the maximum rate permitted by law.

SECTION C. CONFIDENTIALITY

Each party agrees to hold in strict confidence all non-public information disclosed by the other party in connection with this Agreement, and to use such information solely to perform its obligations hereunder. This obligation survives termination of this Agreement for a period of 24 months.

SECTION D. TERMINATION

Either party may terminate this Agreement upon 15 days' written notice to the other party. Either party may terminate immediately upon a material breach by the other party that remains uncured 15 days after written notice of the breach.

SECTION E. LIMITATION OF LIABILITY

Except for breaches of confidentiality, neither party shall be liable for any indirect, incidental, special, or consequential damages arising out of this Agreement. Each party's aggregate liability shall not exceed the total fees paid or payable by Evergreen Industries in the twelve months preceding the claim.

SECTION F. INTELLECTUAL PROPERTY

All work product created by Fulcrum Solutions specifically for Evergreen Industries under this Agreement shall be the sole property of Evergreen Industries upon full payment of the applicable fees. Fulcrum Solutions retains ownership of its pre-existing materials, tools, and methodologies.

SECTION G. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the State of New York, without regard to its conflict of laws principles. The parties consent to the exclusive jurisdiction of the state and federal courts located in New York.

SECTION H. ENTIRE AGREEMENT

This Agreement, together with its exhibits, constitutes the entire agreement between Evergreen Industries and Fulcrum Solutions with respect to its subject matter and supersedes all prior or contemporaneous understandings. Any amendment must be in writing and signed by both parties.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

Ravi Taylor, Evergreen Industries

Olivia Khan, Fulcrum Solutions